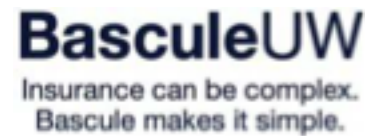


Policy Number: **K0310GL003258-01**

Effective Date: **February 1, 2026**



Jeffrey W Skiba
4990 William Woodard Rd
Springfield TN 37172

Welcome to Bascule!

We are delighted to welcome you to Bascule, your specialist in Farm Insurance. We appreciate your trust in us to protect your insurance needs. With our trusted partner **Marshall & Sterling, Inc**, we are committed to delivering the highest level of customer service and ensuring you receive the personal attention you deserve.

Important Notice About Your Policy Renewal

We'd like to inform you that your policy will be renewed with a different company effective **February 1, 2026**. This change is part of our ongoing effort to provide you with quality coverage and service at competitive rates. Your updated renewal documents are attached for your review.

Please take a moment to carefully review your Policy Declarations and all the accompanying documents. These materials contain important information about your coverage, limits, deductibles, and policy terms. If you have any questions regarding your coverage or policy details, feel free to reach out to **Marshall & Sterling, Inc** at **800-432-1215**.

If your policy premium is set up for payment through our Direct Billing portal, you'll receive a separate invoice approximately 5 days after the start of your coverage with a payment link. You can easily access invoices, manage payments and register for AutoPay at your convenience via mypolicy.basculeuw.com.

Once again, thank you for choosing Bascule for your insurance needs. We look forward to serving you!

Best regards,
Sarah Moore
Chief Operations Officer

A handwritten signature in black ink, appearing to read "Sarah Moore", is positioned below the typed name and title.

Frequently asked questions:

How do I make a claim?

For emergencies call +1-501-228-0900. Please ensure you have your policy number you wish to raise the claim for.

For other types of claims we have made the process simple and easy read our claims guide online basculeuw.com/claims or manage claims via mypolicy.basculeuw.com.

Does Bascule offer AutoPay?

Yes! You can make payments easy by setting up Autopay! You can have your payment automatically deducted from your bank account or charged to your Visa, MasterCard, American Express, or Discover card. It takes less than 30 seconds to access you policy online mypolicy.basculeuw.com

How do I make a payment?

You can go online anytime to make a payment at mypolicy.basculeuw.com. However, you will automatically get email reminders with a link, when pressed will take you straight to checkout.

Prefer to pay via phone? Give us a call Mon - Fri 09:00am - 05:00pm EST on +1877-474-5006, option 2

How do I make a change to my policy?

Although we are always here to help, your chosen agent is the best resource to help with policy changes. You can access your agents details anytime online via mypolicy.basculeuw.com. We have included your agents contact details on the first page of this document.

Important Contact Details:

Most issues can be resolved via mypolicy.basculeuw.com or via our website but in the event you need to contact someone see our contact details below.

Billing Questions: invoicing@basculeuw.com

Payment Line: +1877-474-5006 (option 2)

Claims Line: +1877-474-5006 (option 1)

Your agent is the best resource to answer policy questions, their details can be found anytime at mypolicy.basculeuw.com



Access your policy anytime, anywhere.

One click, no sign-up or stamps needed

At Bascule, we're committed to making your insurance experience as smooth and efficient as possible. That's why we've developed an easy-to-use online portal, available at mypolicy.basculeuw.com. This platform gives you full control and access to your policy anytime, anywhere.

Best of all, no complex sign-up is needed you just need your policy number and zip code.

Online you can:

1. Register for AutoPay
2. Make payments
3. View Policy Documents
4. View Locations
5. Manage Claims

Our portal is designed to give you peace of mind and help you manage your insurance effortlessly, putting everything you need right at your fingertips.

Prefer to pick up the phone? Save a stamp and give us a call at +1877-474-5006, option 2 to find your balance, due date and even make a payment.

No need to sign-up to reminders! You will automatically receive email alerts in relation to your invoices and actions on your policy. Each email will include a unique link, when pressed will take you directly to checkout.

Example Policy

Policy Number

Status	Expired
Inception	1st June 2023
Expiry	1st June 2024
Email	j****@h****.com

[Invoices](#) [Policy Documents](#) [Horses](#) [Claims](#)

! **Needing attention**

3	INV81131 Due: 1st Jan 2024	\$456.73 Overdue	>
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All Invoices

1	INV81129 Paid: 1st July 2023	\$456.73 Paid
2	INV81130 Paid: 1st October 2023	\$456.73 Paid

[Pay in full today](#)

Paying the full value today means a charge o \$1,370.19

How to claim

We understand this can be a stressful time, so we want to make it as easy as possible for you. Below is an overview of the process for successfully submitting and managing a claim.

Immediate Reporting of Incidents

Report claims to International Programs Group (IPG) as soon after the loss as possible while information is fresh. Use any of the following methods 24 hours a day, 7 days a week:

Telephone: 501-228-0900

Internet: https://ipg.scmconnect.ca/en/vv1725013819/pages/SubmitClaimPublic_ipg.html

Electronic: Newassignments@ipgclaims.com

Mail: International Programs Group

PO Box 45058

Bryant, AR 72214

Information Required for Filing a Claim

When submitting a claim, please provide the following information:

- Policy Number
- Location of Loss
- Detailed description of the circumstances of loss
- Contact information for claim
- Contact details for other involved parties
- May upload estimates, photos etc.

An adjuster will be assigned to the claim, and after reviewing the information provided will make personal contract

IOWA SURPLUS LINES NOTICE

"This policy is issued, pursuant to Iowa Code section 515.120, by a nonadmitted company in Iowa and as such is not covered by the Iowa Insurance Guaranty Association."

FARMOWNERS POLICY DECLARATIONS

Policy Number: K0310GL003258-01

This insurance is provided by the company shown below:

Southlake Specialty Insurance Company
 1301 Solana Blvd, Bldg. 2 Suite 2100
 Westlake, TX 76262

Agent:

Bascul Insurance Services, LLC
 PO Box 2502
 Westfield, NJ 07090

INSURED (TCC Member) :**Jeffrey W Skiba****MAILING ADDRESS:**

4990 William Woodard Rd
 Springfield TN 37172

ENTITY TYPE: Individual**FARM TYPE/OPS:**

Private Horse Owner

 This policy is being issued to the specified Member of the Canter Club (TCC), Iowa, under Master Policy: BAS-FO-2021-00

POLICY TERM**Effective Date:** Feb 1, 2026**Expiration Date:** Feb 1, 2027

At 12:01 am Standard Time at your Mailing Address shown above.

COVERAGE PART**ADVANCE PREMIUM**

Farmowners – Property

\$ 0.00

\$265

Farmowners – Private Horse Liability

\$ 265.00

**MINIMUM POLICY
 PREMIUM**
TOTAL ADVANCE PREMIUM

\$ 265.00

TN Surplus Lines Tax

\$ 2.52

Surplus Lines Stamping Fee (if applicable)

\$ 0.00

Estimated Total Advance Premium (Policy Period)

\$ 267.52

Payment Plan: Direct Bill by Bascul 1 Installments

(Taxes and Fees are due with the first Installment)

THIS POLICY IS SUBJECT TO A \$265.00 MINIMUM POLICY PREMIUM.

Insurance Policy Terms and Conditions:

This replaces all previously issued policy Declarations, if any. This policy applies only to accidents, occurrences, or losses as set forth in the attached Coverage Forms and endorsements, if applicable, which happen during the policy term shown above. If the policy is written on a continuous basis, each period of one year ending on the anniversary date of this policy constitutes a separate policy period.

This policy applies only to those coverages below for which a limit of insurance or premium charge is shown. "Our" limit of insurance for each coverage will be not more than the amount stated for such coverage, subject to all the "terms" of this policy as set forth in the attached Coverage Forms and endorsements, if applicable.

Policy Number: K0310GL003258-01

PRIMARY BOARDING LOCATION(S)

LOC NO.	STREET ADDRESS	CITY	STATE	ZIP CODE
1	4990 William Woodard Rd	Springfield	Tennessee	37172

FARMOWNERS – PROPERTY (Scheduled Farm Personal Property)
SCHEDULE OF COVERED PROPERTY

LOC NO.	ITEM NO.	COV	COVERED PROPERTY DESCRIPTION	"LIMIT"	LOSS SETTLEMENT	PERILS	DED / WH%	*COVG FORM(S)
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*Form edition dates are show under the Forms and Endorsements schedule. The Forms and Endorsements listed in the COVG FORM (S) column apply to the LOC NO. and ITEM NO. shown in the corresponding row for that COVG FORM(S).

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FARMOWNERS - LIABILITY

COVERAGE		LIMIT OF LIABILITY	
L.	Private Horse Liability	\$ 1,000,000	Each Occurrence
		\$ 2,000,000	General Aggregate
M.	Medical Payments to Others	\$ 5,000	Per Person
O.	Fire Damage Limit	\$ 100,000	Each Occurrence

SCHEDULE OF COVERAGE AND ENDORSEMENTS

COVERAGE/ENDORSEMENT	EXPOSURE	FORM
Equine Exposures		
Equine - Liability	Horses	FHO 60500
Additional Insured(s)	Additional Insured-Automatic Status	EFL 60404

SCHEDULE OF FORMS AND ENDORSEMENTS

Form Number and Edition Date	Title
WEL-LET	Welcome Letter (Renewals)
WEL-PAC	Welcome Pack
SL IA 08 21	Iowa Surplus Lines Notice
DEC 60003 04 25	PHO Declaration Page
DEC 60003 04 25	Schedule of Forms And Endorsements
SSIC IL D 0008 02 25	Signature Page
SSIC IL N 0004 02 25	Privacy Notice
AIL 00006 04 25	Trade or Economic Sanctions Exclusion
AIL 00007 04 25	OFAC Policyholder Notice
AIL 00010 11 22	General Complaint Notice
GEN 60002 04 25	Notice to Policyholders Insurance Fraud
GEN 60005 04 25	Notice to Policyholders Minimum Earned Premium
SSIC IL 5 0001 02 25	Service of Suit
AUMS IL 9 0009 08 24	Perfluoroalkyl and Polyfluoroalkyl Substances Exclusion
FO 0217 11 08	Water Exclusion Endorsement
FO 0675 10 06	Virus or Bacteria Exclusion
FO 0787 08 00	Amendatory Endorsement TN
FO 1310 05 15	Amendment of Policy Terms
FO-20 1.0	Additional Policy Conditions and Property Coverage Terms
GL 0810 03 05	Migrant and Seasonal Agricultural Worker Protection Act Exclusion
GL 4004 01 17	Amendment Of Aircraft Exclusion
GL 4100 05 15	Exclusion – Asbestos
GL-890 2.0	Lead Liability Exclusion
FHO 60500 04 25	Private Horse Liability (Owned or Leased)
EFL 60404 04 25	Additional Insured – Auto Status PHL



Southlake Specialty Insurance Company

(A Stock Company)

1301 Solana Blvd.
Bldg. 2 Suite 2100
Westlake, TX 76262
(817) 865-5255

Your complete policy consists of the declarations, coverage form(s) and any endorsement(s).

In Witness Whereof, we have caused this policy to be executed and attested, and, if required by state law, this policy shall not be valid unless countersigned by our authorized representative.

President

Authorized Representative Signature

PRIVACY NOTICE

Southlake Specialty Insurance Company (the "Company") and each other member ("Partners") understands our customers' concern about privacy of their information collected by the Company. Our Company is dedicated to protecting the confidentiality and security of nonpublic personal information we collect about our customers in accordance with applicable laws and regulations. This notice refers to the Company by using the terms "us," "we," or "our." This notice describes our privacy policy and describes how we treat the nonpublic personal information about our customers that we receive from them ("Information").

Why We Collect and How We Use Information.

We collect and use Information for business purposes with respect to our insurance products and services and other business relations involving our customers. We gather this Information to evaluate your request for insurance, to evaluate your insurance claims, to administer, maintain, or review your insurance policy, and to process your insurance transactions. We also accumulate certain information about you as may be required or permitted by law.

Your insurance agent or broker also collects this Information and may use it to help with your overall insurance program or to market additional products and services to you. We may also use Information to offer you other products or services that we or our Partners provide.

How We Collect Information.

Most Information collected by us is provided by you or your insurance agent or broker to us. We obtain Information from (i) applications or other forms submitted by you, your insurance agent or broker or your authorized representatives to us and our Partners, and (ii) your transactions with us or our Partners. We may also obtain Information from other sources such as (i) consumer reporting agencies, (ii) other institutions or information services providers, (iii) employers, (iv) other insurers, or (v) your family members.

Information We Disclose

We disclose any Information which we believe is necessary to conduct our business as permitted by applicable law or where required by applicable law. This disclosure may include (i) Information we receive from you on applications or other forms provided to us and our Partners, such as names, addresses, social security numbers, assets, employer information, salaries, etc. (ii) Information about your transactions with us and our Partners, such as policy coverages, premiums, payment history, etc., and (iii) Information we receive from a consumer reporting agency, such as credit worthiness and credit history.

To Whom We Disclose Information

We may, as permitted or required by applicable law, disclose your Information to nonaffiliated third parties, such as (i) your insurance agent or broker, (ii) independent claims adjusters, (iii) insurance support organizations, (iv) processing companies, (v) actuarial organizations, (vi) law firms, (vii) other insurance companies involved in an insurance transaction with you, (viii) law enforcement, regulatory, or governmental agencies, (ix) courts or parties therein pursuant to a subpoena or court order, (x) businesses with whom we have a marketing agreement, or (xi) our Partners.

We may share Information with our Partners so that they may offer you products and services, to analyze our book of business, and to consolidate necessary information. We do not disclose Information to other companies or organizations not affiliated with us for the purpose of using Information to sell their products or services to you. For example, we do not sell your name to unaffiliated mail order or direct marketing companies.

How We Protect Information

We require our employees to protect the confidentiality of Information as required by applicable law. Access to Information by our employees is limited to administering, offering, servicing, processing or maintaining of our products and services. We also maintain physical, electronic and procedural safeguards designed to protect Information. When we share or provide Information to other persons or organizations, we contractually obligate them, if required by law, to treat Information as confidential and conform to our privacy policy and applicable laws and regulations.

Correction and Access to Information

Upon our receipt of your written request to us at **Southlake Specialty Insurance Company, 1301 Solana Blvd., Bldg. 2 Suite 2100, Westlake, TX 76262**, we will, generally, make available Information for your review. If you believe the Information we have about you is incorrect or inaccurate, you may request that we make any necessary corrections, additions or deletions. If we agree with your belief, we will correct our records if required by applicable law. If we do not agree, you may submit to us a short statement of dispute, which we will include in any future disclosure by us of such Information if required by applicable law.

Requirements for Privacy Notice

This privacy notice is being provided due to recently enacted federal and state laws and regulations establishing new privacy standards and requires us to provide this privacy policy. For additional information regarding our privacy policy, please write to us at **Southlake Specialty Insurance Company, 1301 Solana Blvd., Bldg. 2 Suite 2100, Westlake, TX 76262**

Adopted: May 1, 2024

TRADE OR ECONOMIC SANCTIONS EXCLUSION

This policy is amended to include the following "terms". All other "terms" of the policy apply, except as amended by this endorsement.

This [policy/insurance] does not provide any coverage, and [we/the Company/the Insurer] will not pay any claim or expense, or provide any benefit under this [policy/insurance], to the extent that the provision of such coverage, payment of such claim or expense, or provision of such benefit would expose [us/the Company/the Insurer] to any violation of any trade or economic sanctions, laws or regulations, including but not limited to, those administered and enforced by the United States Treasury Department's Office of Foreign Assets Control (OFAC).

U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

Southlake Specialty Insurance Company

IMPORTANT NOTICE FOR POLICYHOLDERS

COMPLAINT PROCEDURES AND TOLL-FREE NUMBER

If you have questions about your policy, or about any insurance matter, you can contact your independent agent or broker. If you have additional questions, contact the company issuing the policy at the following address:

**Southlake Specialty Insurance Company
1301 Solana Blvd., Bldg. 2 Suite 2100
Westlake, TX 76262**

Phone: 817-865-5255

If you have been unable to obtain satisfaction from either the agent or the company, you may contact your state Department of Insurance.

The Department of Insurance should be contacted only after the contacts with agent and the company have failed to produce a satisfactory solution to your problem.

NOTICE TO POLICYHOLDERS INSURANCE FRAUD

This Notice does not form a part of your insurance contract. No coverage is provided by this Notice, nor can it be construed to be in addition to or replace any provisions of your policy, including its endorsements. If there is any conflict between this Notice and your policy, including its endorsements, the provisions of the policy, including its endorsements shall prevail.

Insurance Fraud...It's a crime that affects all of us. According to the Federal Bureau of Investigation, the total cost of insurance fraud (non-health insurance) is estimated to be more than \$40 billion per year. Over the past few years the number of documented cases of insurance fraud has soared, with costs passed along to policyholders as increased premiums.

We at Bascule Insurance Serves, LLC are committed to stopping this crime. You can help by confidentially providing us with any information about persons who have committed fraud or intend to commit fraud.

Please contact:

Bascule Insurance Serves, LLC
P.O. Box 31
Roselle Park, NJ 07204

1-877-474-5006

NOTICE TO POLICYHOLDERS MINIMUM EARNED PREMIUM

This Notice does not form a part of your insurance contract. No coverage is provided by this Notice, nor can it be construed to replace any provisions of your policy (including its endorsements). If there is any conflict between this Notice and the policy (including its endorsements), **the provisions of the policy (including its endorsements) shall prevail.**

Your policy may contain one or more types of coverage that have a minimum earned premium. If this insurance is cancelled at your request, we will retain the minimum earned premium. Please contact your agent with any questions.



THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SERVICE OF SUIT

In the event of our failure to pay any amount claimed to be due under this policy, we agree to submit to the jurisdiction of any court of competent jurisdiction within the United States in which a suit for those amounts may be brought. Nothing in this condition constitutes or should be understood to constitute a waiver of our right to commence an action in any court of competent jurisdiction in the United States to remove an action to a United States District Court or to seek a transfer of a case to another court as permitted by the laws of the United States or of any state in the United States.

Service of process in such suit may be made upon:

US General Counsel
Southlake Specialty Insurance Company
1301 Solana Blvd, Bldg. 2 Suite 2100
Westlake, TX 76262

and in any suit instituted against us with respect to this policy, we will abide by the final decision of such court or of any Appellate Court in the event of an appeal.

To the extent required by the express provision of any statute of any state, territory, district of the United States, we hereby designate the Superintendent, Commissioner or Director of Insurance, or other officer specified for that purpose in the statute, or his successor or successors in office as our true and lawful attorney upon whom may be served any lawful process in any action, suit, or proceeding instituted by you or on your behalf or any beneficiary hereunder arising out of this policy, and we hereby designate the above named Counsel as the person to whom the said officer is authorized to mail such process or true copy thereof.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PERFLUOROALKYL AND POLYFLUOROALKYL SUBSTANCES (PFAS) EXCLUSION

This policy is amended to include the following “terms”. These “terms” apply to all liability coverages provided by this policy. All other “terms” of the policy apply, except as amended by this endorsement.

1. In addition to loss which is excluded elsewhere in this policy because “perfluoroalkyl or polyfluoroalkyl substances” is a “pollutant”, it is agreed that this insurance does not apply to any loss or damage relating to the actual, alleged, or threatened presence of or exposure to, whether directly or indirectly, “perfluoroalkyl or polyfluoroalkyl substances”, including inhalation, ingestion, irritation, absorption or other similar physical exposure to “perfluoroalkyl or polyfluoroalkyl substances”. Such presence of, or exposure to “perfluoroalkyl or polyfluoroalkyl substances” includes, but is not limited to:
 - a. Structures or manufacturing processes containing or using any form of “perfluoroalkyl or polyfluoroalkyl substances”;
 - b. The storing or disposal of “perfluoroalkyl or polyfluoroalkyl substances” or goods, “products” or materials containing “perfluoroalkyl or polyfluoroalkyl substances”;
 - c. The intellectual development, sale, transportation, or distribution whether it is intended or not;
 - d. The removal of “perfluoroalkyl or polyfluoroalkyl substances” from any goods, “products”, materials, structures or manufacturing processes, in any manner, form, quantity; or
 - e. The presence of “perfluoroalkyl or polyfluoroalkyl substances” in any form, or at or from any premises, sites or locations which are at any time owned by, rented to, loaned to, or used by any insured, or arising from operations by any insured.
2. We shall have no obligation under this policy:
 - a. To investigate, settle or defend any claim or “suit” against any insured alleging actual or threatened injury or damage of any nature or kind to persons or property which arises out of or would not have occurred but for the presence of, or exposure to, “perfluoroalkyl or polyfluoroalkyl substances”;
 - b. To pay any damages, judgments, settlements, losses, costs or expenses of any kind or nature that may be awarded or incurred by reason of any such claim or “suit” or any such actual or threatened injury or damage from “perfluoroalkyl or polyfluoroalkyl substances”;
 - c. For any losses, costs or expenses arising out of any obligation, order, direction or request of or upon any insured or others, including, but not limited to, any governmental obligation, order, direction or request, to test for, monitor, clean up, remove, contain, treat, neutralize, or in any way respond to, or assess the effects of “perfluoroalkyl or polyfluoroalkyl substances”;
 - d. To pay for damage to, loss of use of, or reduction in value of a building or any property due to the actual or alleged presence of “perfluoroalkyl or polyfluoroalkyl substances”;
 - e. To pay for any loss for providing of or failing to provide warnings or instructions concerning “perfluoroalkyl or polyfluoroalkyl substances”; or
 - f. To pay for any loss due to warranties or representations made at any time with respect to or concerning “perfluoroalkyl or polyfluoroalkyl substances”.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

3. "Perfluoroalkyl or polyfluoroalkyl substances" means:
- a. Any chemical or substance that contains one or more alkyl carbons on which hydrogen atoms have been partially or completely replaced by fluorine atoms, including but not limited to:
 - (1) Polymer, oligomer, monomer or nonpolymer chemicals and their homologues, isomers, telomers, salts, derivatives, precursor chemicals, degradation products or by-products; Perfluoroalkyl acids (PFAA), such as perfluorooctanoic acid (PFOA) and its salts, or perfluorooctane sulfonic acid (PFOS) and its salts;
 - (2) Perfluoropolyethers (PFPE);
 - (3) Fluorotelomer-based substances; or
 - (4) Side-chain fluorinated polymers; or
 - b. Any goods or "products", including containers, materials, parts or equipment furnished in connection with such goods or "products", that consist of or contain any chemical or substance described in Paragraph a. above.

WATER EXCLUSION ENDORSEMENT

1. The following is added to the first paragraph under General Exclusions in form FO-20. When this policy includes form FO 0005, the following is also added to the first paragraph of item 1. under Exclusions That Apply To Property Coverages in that form:

These exclusions apply whether or not an extensive area suffers damage from or is affected by the excluded cause or event.

2. In form FO-20, Water Damage under General Exclusions is deleted and replaced by the following:

Water

- a. "We" do not pay for loss caused by:

- 1) flood;
- 2) surface water;
- 3) waves, including but not limited to tidal wave and tsunami;
- 4) tides;
- 5) tidal water;
- 6) overflow of any body of water; or
- 7) spray from 1) through 6) above;

whether driven by wind or not.

This includes, but is not limited to, tidal surge, storm surge, and storm tide.

- b. "We" do not pay for loss caused by water that:

- 1) backs up through sewers or drains; or
- 2) overflows or otherwise discharges from:
 - a) a sump, sump pump, or related equipment; or
 - b) any other type of system designed to remove subsurface water which is drained from the foundation area.

- c. "We" do not pay for loss caused by water below the surface of the ground. This includes, but is not limited to, water that exerts pressure on, or seeps, leaks, or flows through or into, a building, sidewalk, driveway, patio, foundation, swimming pool, or other structure.

- d. "We" do not pay for loss caused by matter present in or carried or otherwise moved by water described in a. through c. above.

- e. The exclusions set forth in a. through d. above:

- 1) apply regardless of the cause of the excluded event, whether or not such cause is an act of nature; and
- 2) apply to, but are not limited to, water and matter present in or carried or otherwise moved by water, whether driven by wind or not, that:
 - a) overtops;
 - b) escapes from;
 - c) is released from; or
 - d) is otherwise discharged from;

a dam, levee, dike, floodgate, or other device or feature designed or used to retain, contain, or control water.

- f. "We" do pay for direct loss to covered property caused by fire or explosion (other than a volcanic explosion) resulting from an event excluded in a. through d. above.

- g. These exclusions do not apply to loss caused by theft that is otherwise covered by this policy.

- h. These exclusions do not apply to direct physical loss to covered "livestock" resulting from an event excluded in a. above.

3. When this policy includes form FO 0005, item a. of the definition of "specified perils" is deleted and replaced by the following:

- a. accidental discharge or overflow of liquids or steam from a plumbing, heating, air-conditioning, or automatic fire protective sprinkling system; water heater; or domestic appliance. (Plumbing systems and domestic appliances do not include sumps, sump pumps, or related equipment; any other type of system designed to remove subsurface water which is drained from the foundation area; or roof drains, gutters, downspouts, or like equipment.)

However, "we" do not pay for loss:

- 1) caused by continuous or repeated seepage or leakage;
- 2) on the "insured premises" caused by accidental discharge or overflow which comes from off the "insured premises"; or
- 3) to the system, heater, or appliance from which the liquid or steam escapes.

Under Exclusions That Apply To Property Coverages, 1)b) and 3) of the Water exclusion that apply to surface water and water below the surface of the ground do not apply with respect to loss by water covered under this peril;

4. When this policy includes form FO-2 and or form FO-4, the last paragraph of Accidental Discharge or Overflow of Liquids or Steam in the Perils Section of the form(s) is deleted and replaced by the following:

In this peril, plumbing systems and domestic appliances do not include sumps, sump pumps, or related equipment; any other type of system designed to remove subsurface water which is drained from the foundation area; or roof drains, gutters, downspouts, or like equipment.

Under General Exclusions, a.2) and c. of the Water exclusion that apply to surface water and water below the surface of the ground do not apply with respect to loss by water covered under this peril.

5. When this policy includes form FO-3, Seepage or Leakage under Coverage A -- Residence and Coverage B -- Related Private Structures in the Perils Section of that form is deleted and replaced by the following:

Seepage or Leakage -- "We" do not pay for loss caused by repeated or continuous seepage or leakage of liquids or steam from within a plumbing, heating, air-conditioning, or automatic sprinkler system; water heater; or domestic appliance.

Except as provided above, "we" pay for loss caused by the accidental leakage, overflow, or discharge of liquids or steam from a plumbing, heating, air-conditioning, or automatic sprinkler system; water heater; or domestic appliance on the "insured premises". With respect to this exception, plumbing systems and domestic appliances do not include sumps, sump pumps, or related equipment; any other type of system designed to remove subsurface water which is drained from the foundation area; or roof drains, gutters, downspouts, or like equipment.

When loss is caused by the accidental leakage, overflow, or discharge of liquids or steam from a plumbing, heating, air-conditioning, or automatic sprinkler system; water heater; or domestic appliance on the "insured premises", "we" also pay the reasonable cost of removing and replacing those parts of the building or mobile home necessary to make repairs. "We" do not pay for loss to the system, heater, or appliance from which the liquid or steam escapes.

Under General Exclusions, a.2) and c. of the Water exclusion that apply to surface water and water below the surface of the ground do not apply with respect to loss by water covered under this exception.

6. When this policy includes form FO-3, the last paragraph of Accidental Discharge or Overflow of Liquids or Steam under Coverage C -- Personal Property in the Perils Section of that form is deleted and replaced by the following:

In this peril, plumbing systems and domestic appliances do not include sumps, sump pumps, or related equipment; any other type of system designed to remove subsurface water which is drained from the foundation area; or roof drains, gutters, downspouts, or like equipment.

Under General Exclusions, a.2) and c. of the Water exclusion that apply to surface water and water below the surface of the ground do not apply with respect to loss by water covered under this peril.

7. When this policy includes form FO 0005, the following is added to that form under item 2. of Exclusions That Apply To Property Coverages:

Seepage or Leakage -- "We" do not pay for loss caused by repeated or continuous seepage or leakage of liquids or steam from within a plumbing, heating, air-conditioning, or automatic sprinkler system; water heater; or domestic appliance unless no "insured" knew of or could reasonably be expected to suspect such seepage or leakage.

Under Exclusions That Apply To Property Coverages, 1)b) and 3) of the Water exclusion that apply to surface water and water below the surface of the ground do not apply with respect to loss caused by repeated or continuous seepage or leakage of water from a plumbing, heating, air-conditioning, or automatic sprinkler system; water heater; or domestic appliance on the "insured premises" if no "insured" knew of or could reasonably be expected to suspect such seepage or leakage of water. Plumbing systems and domestic appliances do not include sumps, sump pumps, or related equipment; any other type of system designed to remove subsurface water which is drained from the foundation area; or roof

drains, gutters, downspouts, or like equipment.

8. When this policy includes form FO 0005, Water Damage under Exclusions That Apply To Property Coverages in that form is deleted and replaced by the following:

Water

- 1) "We" do not pay for loss caused by:

- a) flood;
- b) surface water;
- c) waves, including but not limited to tidal wave and tsunami;
- d) tides;
- e) tidal water;
- f) overflow of any body of water; or
- g) spray from a) through f) above;

whether driven by wind or not.

This includes, but is not limited to, tidal surge, storm surge, and storm tide.

- 2) "We" do not pay for loss caused by water that:

- a) backs up through sewers or drains; or
- b) overflows or otherwise discharges from:

- (1) a sump, sump pump, or related equipment; or
- (2) any other type of system designed to remove subsurface water which is drained from the foundation area.

- 3) "We" do not pay for loss caused by water below the surface of the ground. This includes, but is not limited to, water that exerts pressure on, or seeps, leaks, or flows through or into, a building, sidewalk, driveway, patio, foundation, swimming pool, or other structure.
- 4) "We" do not pay for loss caused by matter present in or carried or otherwise moved by water described in 1) through 3) above.

5) The exclusions set forth in 1) through 4) above:

- a) apply regardless of the cause of the excluded event, whether or not such cause is an act of nature; and
- b) apply to, but are not limited to, water and matter present in or carried or otherwise moved by water, whether driven by wind or not, that:

- (1) overtops;
- (2) escapes from;
- (3) is released from; or
- (4) is otherwise discharged from;

a dam, levee, dike, floodgate, or other device or feature designed or used to retain, contain, or control water.

- 6) "We" do pay for direct loss to covered property caused by fire or explosion (other than a volcanic explosion) resulting from an event excluded in 1) through 4) above.
- 7) These exclusions do not apply to loss caused by theft that is otherwise covered by this policy.
- 8) With respect to these exclusions, surface water and water below the surface of the ground do not include water that accidentally discharges or overflows from a plumbing, heating, air-conditioning, or automatic fire protective sprinkling system, water heater, or domestic appliance on the "insured premises" when loss caused by such water is not otherwise excluded by this policy. Plumbing systems and domestic appliances do not include sumps, sump pumps, or related equipment; any other type of system designed to remove subsurface water which is drained from the foundation area; or roof drains, gutters, downspouts, or like equipment.

9) These exclusions do not apply to loss to property covered under Coverage C while such property is away from an "insured premises" or a location owned by, rented to, occupied by, used by, or in the care of an "insured". With respect to such loss, the Weather Conditions exclusion under Exclusions That Apply To Property Coverages does not apply.

- 9. When this policy includes form FO 0005, the last paragraph of item 2. under Exclusions That Apply To Property Coverages in that form is deleted and replaced by the following:

"We" do pay for loss not otherwise excluded caused by liquids or steam which escape from a plumbing, heating, air-conditioning, or automatic fire protective sprinkling system; water heater; or domestic appliance on the "insured premises" resulting from a cause or event excluded under exclusions 2.f. through 2.j. above. This includes the reasonable cost of removing and replacing those parts of the building or mobile home needed to repair the system, heater, or appliance. This does not include loss to the system, heater, or appliance from which the liquid or steam escapes.

With respect to this exception, plumbing systems and domestic appliances do not include sumps, sump pumps, or related equipment; any other type of system designed to remove subsurface water which is drained from the foundation area; or roof drains, gutters, downspouts, or like equipment.

Under Exclusions That Apply To Property Coverages, 1)b) and 3) of the Water exclusion that apply to surface water and water below the surface of the ground do not apply with respect to loss by water covered under this exception.

10. When this policy includes endorsement FO-362, Seepage or Leakage under Exclusions Applying To Coverage E in that endorsement is deleted and replaced by the following:

Seepage or Leakage -- "We" do not pay for loss caused by repeated or continuous seepage or leakage of liquids or steam from within a plumbing, heating, air-conditioning, or automatic sprinkler system; water heater; or domestic appliance.

Except as provided above, "we" pay for loss caused by the accidental leakage, overflow, or discharge of liquids or steam from a plumbing, heating, air-conditioning, or automatic sprinkler system; water heater; or domestic appliance on the "insured premises". With respect to this exception, plumbing systems and domestic appliances do not include sumps, sump pumps, or related equipment; any other type of system designed to remove subsurface water which is drained from the foundation area; or roof drains, gutters, downspouts, or like equipment.

When loss is caused by the accidental leakage, overflow, or discharge of liquids or steam from a plumbing, heating, air-conditioning, or automatic sprinkler system; water heater; or domestic appliance on the "insured premises", "we" also pay the reasonable cost of removing and replacing those parts of the building or mobile home necessary to make repairs. "We" do not pay for loss to the system, heater, or appliance from which the liquid or steam escapes.

Under General Exclusions, a.2) and c. of the Water exclusion that apply to surface water and water below the surface of the ground do not apply with respect to loss by water covered under this exception.

FO 0217 11 08

VIRUS OR BACTERIA EXCLUSION

The following provisions are added with respect to all property coverages provided by this policy. All other "terms" of the policy apply, except as amended by this endorsement.

1. The following exclusion is added under General Exclusions in form FO-20 or FO 0020. When this policy includes form FO 0005, the following exclusion is also added under item 1. of Exclusions That Apply To Property Coverages in that form.

Virus or Bacteria -- "We" do not pay for loss, cost, or expense caused by, resulting from, or relating to any virus, bacterium, or other microorganism that causes disease, illness, or physical distress or that is capable of causing disease, illness, or physical distress.

This exclusion applies to, but is not limited to, any loss, cost, or expense as a result of:

- a. any contamination by any virus, bacterium, or other microorganism; or
- b. any denial of access to property because of any virus, bacterium, or other microorganism.

2. The Virus or Bacteria exclusion set forth by this endorsement supersedes the "terms" of any other exclusions referring to "pollutants" or to contamination with respect to any loss, cost, or expense caused by, resulting from, or relating to any virus, bacterium, or other microorganism that causes disease, illness, or physical distress or that is capable of causing disease, illness, or physical distress.
3. Any of the following provisions that are a part of this policy are amended by removing the reference to bacteria:
 - a. the Fungi, Wet or Dry Rot, or Bacteria exclusion;
 - b. the Incidental Property Coverage for Fungi, Wet or Dry Rot, or Bacteria, including the aggregate "limit" for that coverage; and
 - c. under Farm Income Coverage, the definition of "restoration period" and the Additional Coverage for Interruption by Fungi, Wet or Dry Rot, or Bacteria.
4. The "terms" of this endorsement, whether or not applicable to any loss, cost, or expense, cannot be construed to provide coverage for a loss, cost, or expense that would otherwise be excluded under the policy to which this endorsement is attached.

FO 0675 10 06

AMENDATORY ENDORSEMENT TENNESSEE

1. Under Additional Policy Terms Applicable to All Coverages, General Exclusions, Intentional Act is deleted and replaced by the following:

Intentional Acts -- "We" do not provide coverage for an "insured" who commits or directs an act with intent to cause a loss.

2. Under Other Conditions, Misrepresentation, Concealment, or Fraud is deleted and replaced by the following:

Misrepresentation, Concealment, or Fraud -- "We" do not provide coverage for an "insured" who has, before or after a loss:

- a. willfully concealed or misrepresented:
 - 1) a material fact or circumstance that relates to this insurance or the subject thereof; or
 - 2) an "insured's" interest therein; or
- b. engaged in fraudulent conduct or sworn falsely with regard to a matter that relates to this insurance or the subject thereof.

The following provision amends the Liability Coverage "terms", if applicable:

3. Under Conditions, Misrepresentation, Concealment, or Fraud is deleted and replaced by the following:

Misrepresentation, Concealment, or Fraud -- "We" do not provide coverage for an "insured" who has, before or after a loss:

- a. willfully concealed or misrepresented:
 - 1) a material fact or circumstance that relates to this insurance or the subject thereof; or
 - 2) an "insured's" interest therein; or
- b. engaged in fraudulent conduct or sworn falsely with regard to a matter that relates to this insurance or the subject thereof.

AMENDMENT OF POLICY TERMS

This policy is amended to include the following "terms". All other "terms" of the policy apply, except as amended by this endorsement.

1. Under General Exclusions, (Exclusions That Apply To Property Coverages in form FO 0005), Earth Movement is deleted and replaced by the following:

Earth Movement --

- 1) "We" do not pay for loss or damage caused by earth movement whether the earth movement results from a natural cause, a manmade cause, or a combination thereof.

Manmade causes include but are not limited to:

- a) construction or excavation activities;
- b) blasting;
- c) extracting gas, heat, minerals, oil, steam, water, or any other natural resource, substance, or material from below the earth's surface by any process, including but not limited to:

- (1) hydraulic fracturing;
- (2) mining;
- (3) drilling; or
- (4) geothermal energy extraction;

- d) injecting any natural resource, substance, or material, including but not limited to, water and wastewater, below the earth's surface for any purpose;
- e) storing any natural resource, substance, or material, including but not limited to carbon dioxide, below the earth's surface; or
- f) any combination of a) through e) above.

- 2) In this exclusion, earth movement means any movement of earth, including but not limited to:

- a) earthquake, earth tremor, or earth temblor, including any aftershocks, whether manifested in shaking, ground displacement, or otherwise;
- b) soil liquefaction, whether or not caused by:

- (1) earthquake;
- (2) earth tremor; or
- (3) earth temblor;

- c) land shock waves or tremors before, during, or after the eruption, explosion, or effusion of a volcano;
- d) landslide, mudflow, or mudslide, including the movement of matter present in or carried or otherwise moved by landslide, mudflow, or mudslide;
- e) subsidence; or
- f) any other earth movement, including but not limited to:

- (1) earth sinking, rising, or shifting;
- (2) movement caused by the:

- (a) expansion;
- (b) contraction;
- (c) compaction, whether improper or otherwise;
- (d) freezing;
- (e) thawing; or
- (f) shrinking;

of earth; or

- (3) movement caused by:

- (a) erosion; or
- (b) water below the earth's surface.

However, this does not include the peril for sinkhole collapse ("sinkhole collapse" in form FO 0005).

Earth includes but is not limited to ground, soil, sediments, substrates, and strata.

- 3) With respect to earth movement that results from a manmade cause or a combination of natural and manmade causes, this exclusion applies:
 - a) whether or not the earth movement results from an error or omission of any person, group, organization, or governmental body or authority;
 - b) whether or not the cause of the earth movement originates on or under covered property; and
 - c) whether or not the earth movement results from activities being performed at the request of an insured or for an insured's benefit.
- 4) This exclusion does not apply to:
 - a) direct loss or damage to covered "livestock" caused by earthquake;
 - b) direct loss or damage to covered property caused by fire or explosion resulting from earth movement;
 - c) loss or damage caused by the peril for volcanic action ("volcanic action" in form FO 0005); or
 - d) loss or damage caused by theft that is otherwise covered by this policy.
2. In forms FO-2, FO-3, FO-4, and FO 0005 only, under Incidental Property Coverages, Collapse is deleted and replaced by the following:

Collapse

- a. "We" pay for direct physical loss to property covered under Coverages A, B, and C as applicable involving the abrupt collapse of a building or a part of a building when such collapse is caused only by one or more of the following:
 - 1) breakage of glass or safety glazing material that is part of a building;
 - 2) insect, rodent, or "vermin" damage to a building or a part of a building, but only if no "insured" knew of or could reasonably be expected to suspect the presence of such damage prior to the collapse;

- 3) decay of a building or a part of a building, but only if no "insured" knew of or could reasonably be expected to suspect the presence of such decay prior to the collapse;
- 4) weight of animals, equipment, people, or personal property;
- 5) weight of rain that collects on a roof; or
- 6) the use of defective materials or methods in the construction, repair, or renovation of a building or a part of a building if the collapse occurs during the course of construction, repair, or renovation.

However, "we" do not pay for loss to awnings, bulkheads, cesspools, decks, docks, drains, fences, flues, foundations, patios, paved areas, piers, retaining walls, septic tanks, swimming pools, underground pipes, or wharves caused by a peril described in 1) through 6) above unless the loss is the direct result of the collapse of a building or a part of a building. With respect to loss caused by a peril described in 1) through 6) above, awnings, bulkheads, cesspools, decks, docks, drains, fences, flues, foundations, patios, paved areas, piers, retaining walls, septic tanks, swimming pools, underground pipes, and wharves are not considered to be buildings or parts of buildings, whether or not such property is attached to or connected to one or more buildings.

- b. In this Incidental Property Coverage, abrupt collapse of a building or a part of a building means an abrupt caving in, falling in, falling down, or giving way of the building or the part of the building that prevents the building or the part of the building from being occupied for the purpose for which it was intended just before caving in, falling in, falling down, or giving way.

- c. This Incidental Property Coverage does not apply to:
- 1) a building or a part of a building that has not caved in, fallen in, fallen down, or given way even if it displays evidence of bending, bowing, bulging, cracking, expansion, inadequate load bearing capacity, leaning, sagging, settling, or shrinkage;
 - 2) a building or a part of a building in danger of caving in, falling in, falling down, or giving way; or
 - 3) a part of a building that has not caved in, fallen in, fallen down, or given way even if it has separated from another part of the building.
- d. This Incidental Property Coverage does not increase the "limits" that apply to the property covered under Coverages A, B, and C when applicable.
- e. This Incidental Property Coverage for Collapse is not subject to any bacteria, fungi, wet rot, or dry rot exclusion when applicable.
- f. (Form FO 0005 only) Under Exclusions That Apply To Property Coverages, the exclusion for Errors, Omissions, And Defects does not apply to this coverage.
3. In form FO-3 and form FO 0005, the Collapse exclusion, wherever it appears, is deleted and replaced by the following:
- (3) any bending, bowing, bulging, cracking, expanding, inadequacy of load bearing capacity, leaning, sagging, settling, or shrinking associated with (1) or (2) above.
- b) This exclusion does not apply:
- (1) to the extent that coverage is provided under the Incidental Property Coverage for Collapse;
 - (2) in form FO 0005, to collapse caused by a "specified peril"; or
 - (3) in form FO-3, to collapse caused by a peril described under Coverage C.
- With respect to this exception, the peril of Weight Of Ice, Snow, Or Sleet means the weight of ice, snow, or sleet that causes damage to a building.
4. In form FO-6 only, under Perils Section -- Coverages E, F, And G, Collision, item a.1) is deleted and replaced by the following:
- 1) to belts, tracks, tires, or tubes, unless the damage is coincidental with other damage to the farm machinery or implement;
5. Coverage L -- Liability under Principal Coverages is deleted and replaced by the following:

Collapse Or Impairment

- a) "We" do not pay for loss involving collapse, including but not limited to:
- (1) an abrupt caving in, falling in, falling down, or giving way;
 - (2) impairment of structural integrity, including but not limited to:
 - (a) a danger of caving in, falling in, falling down, or giving way; or
 - (b) a separation of one or more parts of a building or structure from its other parts; or

Coverage L -- Liability -- "We" pay, up to the "limit" that applies, those sums for which an "insured" is legally liable because of "bodily injury" or "property damage" caused by an "occurrence" to which this coverage applies.

"We" will defend a suit seeking damages if the suit resulted from "bodily injury" or "property damage" caused by an "occurrence" to which this coverage applies. Such defense will be provided at "our" expense by counsel that "we" choose.

"We" may make investigations and settle claims or suits that "we" decide are appropriate. "We" do not have to settle or provide a defense after "we" have paid an amount equal to the "limit" that applies as a result of a judgment or written settlement.

6. Claims And Defense Cost, items a. and b. are deleted and replaced by the following:

the costs incurred by "us" and the court costs taxed to an "insured" in a suit "we" defend. However, "we" will not pay for attorney fees or attorney expenses taxed to an "insured";

7. Under Exclusions That Apply To Coverage L And Coverage M:

- a. Exclusion j. is deleted and replaced by the following:

- j. "bodily injury" or "property damage" that is:
- 1) expected by, directed by, or intended by any "insured";
 - 2) the result of a criminal act of any "insured"; or
 - 3) the result of an intentional and malicious act by or at the direction of any "insured".

There is no coverage for anyone who is an "insured" under this policy for any "bodily injury" or "property damage" arising out of any of the acts described in 1), 2), or 3) above regardless of the theory of relief pursued, asserted, or claimed against the person or entity seeking coverage under this policy.

This exclusion applies even if the "bodily injury" or "property damage" that occurs is different than what was expected, directed, or intended or is suffered by persons, entities, or property not expected, directed, or intended.

However, this exclusion does not apply to "bodily injury" or "property damage" that arises out of the use of reasonable force by an "insured" to protect people or property.

- b. The following exclusion is added:

The Personal Liability Coverage does not apply to "bodily injury" or "property damage" that arises out of electronic aggression, including but not limited to harassment or bullying committed:

- 1) by means of an electronic forum, including but not limited to a blog, an electronic bulletin board, an electronic chat room, a gripe site, a social networking site, a web site, or a weblog; or
- 2) by other electronic means, including but not limited to email, instant messaging, or text messaging.

The following provisions amend the Commercial Liability Coverage (Farm Premises and Operations) "terms", if applicable:

8. Coverage L – Bodily Injury Liability/Property Liability Injury under Principal Coverages is deleted and replaced by the following:

**COVERAGE L -- BODILY INJURY
LIABILITY/PROPERTY DAMAGE LIABILITY**

"We" pay, up to the "limit" that applies, those sums which an "insured" is legally liable because of "bodily injury" or "property damage" to which this insurance applies. The "bodily injury" or "property damage" must be caused by an "occurrence" and arise out of the ownership, maintenance, or use of the "insured premises" or operations that are necessary or incidental to the "insured premises".

This insurance applies only to "bodily injury" or "property damage" which occurs during the policy period.

9. Defense Coverage, items 3.a. and 3.b. are deleted and replaced by the following:

the costs incurred by "us" and the court costs taxed to an "insured" in a suit "we" defend. However, "we" will not pay for attorney fees or attorney expenses taxed to an "insured";

10. Under EXCLUSIONS THAT APPLY TO BODILY INJURY AND/OR PROPERTY DAMAGE:

- a. Exclusion 1. is deleted and replaced by the following:

1. "We" do not pay for "bodily injury" or "property damage" that is:

- a. expected by, directed by, or intended by any "insured";
- b. the result of a criminal act of any "insured"; or
- c. the result of an intentional and malicious act by or at the direction of any "insured".

There is no coverage for anyone who is an "insured" under this policy for any "bodily injury" or "property damage" arising out of any of the acts described in a., b., or c. above regardless of the theory of relief pursued, asserted, or claimed against the person or entity seeking coverage under this policy.

This exclusion applies even if the "bodily injury" or "property damage" that occurs is different than what was expected, directed, or intended or is suffered by persons, entities, or property not expected, directed, or intended.

However, this exclusion does not apply to "bodily injury" or "property damage" that arises out of the use of reasonable force by an "insured" to protect people or property.

- b. The following exclusion is added:

"We" do not pay for "bodily injury" or "property damage" that arises out of electronic aggression, including but not limited to harassment or bullying committed:

- a. by means of an electronic forum, including but not limited to a blog, an electronic bulletin board, an electronic chat room, a gripe site, a social networking site, a web site, or a weblog; or
- b. by other electronic means, including but not limited to email, instant messaging, or text messaging.

ADDITIONAL POLICY CONDITIONS AND PROPERTY COVERAGE TERMS

ADDITIONAL POLICY CONDITIONS APPLICABLE TO ALL COVERAGES

1. **Assignment** -- This policy may not be assigned without "our" written consent.
2. **Cancellation and Nonrenewal** -- "You" may cancel this policy by returning the policy to "us" or by giving "us" written notice and stating at what future date coverage is to stop.

"We" may cancel or not renew this policy by written notice to "you" at the address shown on the "declarations". Proof of delivery or mailing is sufficient proof of notice.

During the first 60 days this policy is in effect, "we" may cancel for any reason. "We" will give "you" notice at least ten days before cancellation is effective.

After this policy has been in effect 60 days or more, or if it is a renewal of a policy issued by "us", "we" may cancel or not renew only at the anniversary date unless:

- a. the premium has not been paid when due;
- b. the policy was obtained through fraud, material misrepresentation, or omission of fact, which, if known by "us", would have caused "us" not to issue the policy; or
- c. there has been a material change or increase in hazard of the risk.

If "we" cancel this policy for nonpayment of premium, "we" will give "you" notice at least ten days before cancellation is effective. If "we" cancel this policy for any other reason after it has been in effect for 60 days or more, "we" will give "you" notice at least 30 days before cancellation is effective.

If "we" do not renew this policy, "we" will give "you" notice at least 30 days before nonrenewal is effective.

"Your" return premium, if any, will be refunded at the time of cancellation or as soon as practical. Payment or tender of the unearned premium is not a condition of cancellation.

3. **Change, Modification, or Waiver of Policy Terms** -- A waiver or change of the "terms" of this policy must be issued by "us" in writing to be valid. If, in the policy period, "we" adopt a revision which broadens coverage without an additional premium, the broadened coverage will apply.

"Our" request for an appraisal or examination under oath does not waive policy "terms".

If this policy has no expiration date, "we" may substitute or "we" may add, at each anniversary date, forms that are then authorized for use.

4. **Examination of Books and Records** -- "We" may examine and audit "your" books and records that relate to this policy during the policy period and within three years after the policy has expired.
5. **Inspections** -- "We" have the right, but are not obligated, to inspect "your" property and operations. This inspection may be made by "us" or may be made on "our" behalf. An inspection or its resulting advice or report does not warrant that "your" property or operations are safe, healthful, or in compliance with laws, rules, or regulations. Inspections or reports are for "our" benefit only.

ADDITIONAL POLICY TERMS APPLICABLE TO ALL PROPERTY COVERAGES

GENERAL EXCLUSIONS

"We" do not pay for loss if one or more of the following exclusions apply to the loss, regardless of other causes or events that contribute to or aggravate the loss, whether such causes or events act to produce the loss before, at the same time as, or after the excluded causes or events.

1. **Business Interruption** -- "We" do not pay for loss which results from interruption of "business".
2. **Civil Authority** -- "We" do not pay for a loss which results from order of civil authority, except as provided under Coverage D.

"We" do pay for loss which results from acts of a civil authority to prevent the spread of fire. "We" do not pay if the fire was caused by an excluded peril.

3. **Earth Movement** -- "We" do not pay for loss which results from earth movement whether the earth movement results from natural or artificial causes.

Earth movement includes but is not limited to:

- a. earthquake;
- b. landslide, subsidence, erosion;
- c. mudflow;
- d. earth sinking, rising, shifting, expanding, or contracting. This does not include Sinkhole Collapse as described under the Perils Section; or

- e. volcanic explosion. Volcanic explosion does not include Volcanic Action as described under the Perils Section.

This exclusion does not apply to direct physical loss to covered "livestock" caused by earthquake.

"We" do pay for direct loss caused by fire, explosion (other than a volcanic explosion), and theft resulting from earth movement.

"We" do pay for the breakage of glass that is part of a covered structure resulting from earth movement.

4. **Intentional Acts** -- "We" do not pay for loss which results from an act committed by or at the direction of an "insured" and with the intent to cause a loss.
5. **Neglect** -- "We" do not pay for loss which results from the neglect of an "insured" to use all reasonable means to save and preserve covered property at and after the time of a loss.
6. **Nuclear Hazard** -- "We" do not pay for loss which results from nuclear reaction, nuclear radiation, or radioactive contamination (whether controlled or uncontrolled; whether caused by, contributed to, or aggravated by a peril insured against and whether caused by natural, accidental, or artificial means). Loss caused by nuclear hazard is not considered loss caused by fire, explosion, or smoke. Direct loss by fire resulting from the nuclear hazard is covered.
7. **Ordinance or Law** -- "We" do not pay for loss or increased cost which results from the enforcement of a code, ordinance, or law which regulates the use, construction, repair, or demolition of property or the removal of its debris, except as provided by Incidental Increased Cost -- Ordinance or Law Coverage for property covered under Coverages A and B.

8. **Power Disruption** -- "We" do not pay for loss which results from the disruption of power or other utility service, whether or not it is caused by a peril insured against, if the cause of the disruption is not on the "insured premises".

"We" do pay for direct loss by a peril insured against which occurs on the "insured premises" as a result of the disruption of power.

9. **War** -- "We" do not pay for loss which results from declared or undeclared war, civil war, insurrection, rebellion, revolution, warlike act by a military force or military personnel, or destruction, seizure, or use of property for a military purpose. It includes the consequences of these. Discharge of a nuclear weapon is deemed an act of war even if it is accidental.

10. **Water Damage** -- "We" do not pay for loss which results from the following:

- a. flood, surface water, waves, tidal water, overflow of a body of water, or spray, all whether driven by wind or not;
- b. water which backs up through or overflows from sewers, drains, or sumps; or
- c. water below the surface of the ground. This includes water which exerts pressure on, or seeps or leaks through or into a building, sidewalk, driveway, foundation, swimming pool, or other structure.

This exclusion does not apply to direct physical loss to covered "livestock" caused by flood, surface water, waves, tidal water, overflow of a body of water, or spray, all whether driven by wind or not.

"We" do pay for direct loss caused by fire; explosion (other than a volcanic explosion); and theft resulting from water damage.

11. **Wear and Tear** -- "We" do not pay for loss which results from wear and tear, marring, deterioration, inherent vice, latent defect, mechanical breakdown, rust, wet or dry rot, corrosion, mold, contamination, or smog. "We" do pay for an ensuing loss unless the ensuing loss itself is excluded.

12. **Weather Conditions** -- "We" do not pay for loss which results from weather conditions that initiate, set in motion, or in any way contribute to losses excluded under the preceding General Exclusions (Numbers 1 through 11).

"We" do pay for an ensuing loss unless the ensuing loss itself is excluded.

13. **Errors, Omissions, and Defects** -- "We" do not pay for loss which results from one or more of the following:

- a. an act, error, or omission (negligent or not) relating to:

- 1) land use;
- 2) the design, specification, construction, workmanship, or installation of property;
- 3) planning, zoning, development, surveying, siting, grading, compaction; or
- 4) maintenance of property (including land, structures, or improvements);

whether on or off the "insured premises";

- b. a defect, a weakness, the inadequacy, a fault, or unsoundness in materials used in construction or repair whether on or off the "insured premises".

"We" do pay for an ensuing loss unless the ensuing loss itself is excluded.

WHAT YOU MUST DO IN CASE OF LOSS

1. Notice --

- a. In case of a loss, the "insured" must:
 - 1) give "us" or "our" agent prompt notice ("We" may request written notice);
 - 2) give notice to the police when the act that causes the loss is a crime; and
 - 3) give notice to the credit card company if the loss involves a credit card.
- b. The notice to "us" must state:
 - 1) the name of the "insured", the policy number and the time, place, and the details of the loss; and
 - 2) the names and addresses of all known potential claimants and witnesses.

2. Cooperation -- "You" must cooperate with "us" in investigating and settling the claim.

3. Volunteer Payments -- "You" must not make payments, pay or offer rewards, or assume obligations or other costs, except at "your" own cost. This does not apply to costs that are allowed by this policy.

4. Repairs -- The "insured" must take all reasonable steps to protect covered property at and after an insured loss to avoid further loss. "We" will pay the reasonable costs incurred by "you" for necessary repairs or emergency measures performed solely to protect covered property from further damage by a peril insured against if a peril insured against has already caused a loss to covered property. The "insured" must keep an accurate record of such costs. However, "we" will not pay for such repairs or emergency measures performed on

property which has not been damaged by a peril insured against. This does not increase "our" "limit".

5. Other Duties -- At "our" request the "insured" must:

- a. give "us" a signed, sworn proof of loss, within 60 days after "our" request, that shows:
 - 1) the time, place, and the details of the loss;
 - 2) the interest of the "insured" and the interest of all others in the property. This includes all mortgages and liens;
 - 3) other policies that may cover the loss;
 - 4) changes in title or use;
 - 5) available plans and specifications of buildings;
 - 6) detailed estimates for repair; and
 - 7) in detail, the quantity, description, cost, amount of loss, and actual cash value of the personal property involved in the loss. The "insured" must give "us" copies of all bills, receipts, and related documents to confirm these;
- b. submit to examination under oath in matters that relate to the loss or claim as often as "we" reasonably request. If more than one person is examined, "we" have the right to examine and receive statements separately from each person and not in the presence of the others;
- c. show the damaged property and allow "us" to take samples of damaged property for inspection, testing, and analysis as often as "we" reasonably request;
- d. show records, including tax returns and bank records of all canceled checks that relate to the value, loss, and costs, and permit copies to be made of them as often as "we" reasonably request;

- e. assist "us" to enforce any right of recovery which the "insured" may have against a party causing the loss;
- f. show records that prove loss of rents and show receipts for additional living costs, and permit copies to be made of them as often as "we" reasonably request; and
- g. submit evidence or affidavit supporting a claim under Credit Card, Forgery, and Counterfeit Money Coverage stating the amount and cause of loss.

HOW MUCH WE PAY FOR LOSS OR CLAIM

- 1. **Our Limit** -- Subject to the deductible or other limitation that applies, "we" pay the lesser of:
 - a. the "limit" that applies;
 - b. "your" interest in the property; or
 - c. the amount determined under the applicable Loss Settlement Provisions.
- 2. **Deductible** -- This applies to all Principal Property Coverages and Incidental Property Coverages, except:
 - a. Emergency Removal; Fire Department Service Charge; and, if provided by this policy,
 - b. Credit Card, Forgery, and Counterfeit Money; Grave Markers; Refrigerated Food Spoilage; Signs; Glass Breakage in Cabs; Farm Operations Records; and Extra Expense.

This applies to all perils insured against unless otherwise shown.

"We" pay that part of the loss over the deductible. The deductible applies per occurrence, and separately at each covered location. Only one deductible applies at each location. When an occurrence affects two or more items at the same location with different deductible amounts, the highest deductible amount applies.

- 3. **Loss to a Pair or Set** -- If there is a loss to an item that is part of a pair or set, "we" pay only to replace or repair the item, or "we" pay the difference in the actual cash value of the pair or set just before the loss and the actual cash value just after the loss.
- 4. **Loss to Parts** -- If there is a loss to a part of an item that consists of several parts when it is complete, "we" pay only for the value of the lost or damaged part or the cost to repair or replace it.
- 5. **Vacancy or Unoccupancy** -- If a location shown on the "declarations" is vacant or unoccupied for more than 120 days in a row, the "limit" that applies to buildings and their contents at the vacant or unoccupied location will be automatically reduced by 50%.
- 6. **Insurance Under More Than One Coverage** -- If more than one coverage of this policy applies to a loss, "we" pay no more than the actual loss.
- 7. **Insurance Under More Than One Policy** -- If there is other insurance that applies to the loss, "we" pay "our" share of the loss. "Our" share is that part of the loss that the "limit" of this policy bears to the total amount of insurance that applies to the loss.
- 8. **Restoration of Limits** -- Each loss "we" pay under this policy does not reduce the "limits" available over the policy period.

PAYMENT OF LOSS OR CLAIM

1. **Your Property** -- "We" adjust each loss with "you". "We" pay an insured loss within 30 days after an acceptable proof of loss is received and the amount of the loss is agreed to in writing. If "you" and "we" do not agree, "we" pay within 30 days after the filing of an appraisal award with "us". Payment is made to "you" unless a loss payee is named.
2. **Additional Living Costs** -- If the "insured premises" is made unfit for use for more than one month, covered costs are paid on a monthly basis. "You" must give "us" proof of such costs.
3. **Damage to Personal Property of Others** -- At "our" option, an insured loss may be adjusted with and paid:
 - a. to "you" on behalf of the owner; or
 - b. to the owner. If "we" pay the owner, "we" do not have to pay an "insured".
4. **Our Options** -- "We" may:
 - a. pay the loss in money; or
 - b. rebuild, repair, or replace the property. "We" must give "you" notice of "our" intent to do so within 30 days after "we" receive an acceptable proof of loss.

"We" may take all or part of the damaged property at the agreed or appraised value. Property paid for or replaced by "us" becomes "ours".

OTHER CONDITIONS

1. **Abandonment of Property** -- "You" may not abandon the property to "us" unless "we" agree.
2. **Appraisal** -- If "you" and "we" do not agree as to the value of the property or the amount of the loss, "you" and "we" will each select a competent appraiser within 20 days after receiving a written request from the other. The two appraisers will select an umpire. If they do not agree on an umpire, the two appraisers will ask a judge of a court of record of the state in which the appraisal is pending to make the selection. The written agreement of any two of these three will be binding and set the amount of the loss. "You" will pay the expense of "your" appraiser and "we" will pay for "ours". "You" and "we" will share equally the expense of the umpire and the other expenses of the appraisal.
3. **Conformity With Statute** -- "Terms" in conflict with the laws of the state where the "insured premises" is located are changed to conform to such laws.
4. **Death** -- This applies only if the "insured" is an individual. On "your" death, protection on "your" covered property passes to:
 - a. "your" legal representative; or
 - b. any other persons having proper, temporary custody of covered property.
5. **Livestock** -- Loss to covered "livestock" means the death or destruction caused or made necessary by a peril insured against under Coverages F or G.

If covered by this policy, loss to covered "livestock" includes loss resulting from theft.

6. **Misrepresentation, Concealment, or Fraud** -- This coverage is void as to "you" and any other "insured" if before or after a loss:

- a. "you" or any "insured" has willfully concealed or misrepresented:
 - 1) a material fact or circumstance that relates to this insurance or the subject thereof; or
 - 2) the "insured's" interest herein;
- b. there has been fraud or false swearing by "you" or any other "insured" with regard to a matter that relates to this insurance or the subject thereof.

7. **Mortgage, Secured Party, and Lender's Loss Payable Clause** -- If a mortgagee is named on the "declarations", a loss payable for covered buildings will be paid to the mortgagee and "you", as interests appear. If more than one mortgagee is named, the order of payment will be the same as the order of precedence of the mortgages. The word mortgagee includes trustee.

If a secured party is named on the "declarations", a loss payable on property subject to the security interest will be paid to the secured party and "you" as interests appear. If there is more than one security interest in the same property, the order of payment will be the same as their order of priority.

However, the secured party's interest is not covered for "your" conversion, embezzlement, or secretion of encumbered property in "your" possession, unless specifically insured against and premium paid for such.

If a lender is named on the "declarations", a loss payable on property on which the lender has an insurable interest will be paid to the lender and "you" as interest appear.

If "we" deny "your" claim, that denial does not apply to a valid claim of the mortgagee, secured party, or lender if the mortgagee, secured party, or lender has:

- a. notified "us" of change in ownership, occupancy, or substantial change in risk of which the mortgagee, secured party, or lender became aware;
- b. paid the premium due under this policy on demand if "you" neglected to pay the premium; and
- c. submitted a signed, sworn proof of loss within 60 days after receiving notice from "us" if "you" failed to do so.

All "terms" of this policy apply to the mortgagee, secured party, or lender unless changed by this clause.

If "we" cancel or do not renew this policy, "we" will notify the mortgagee, secured party, or lender at least ten days before the date cancellation or nonrenewal takes effect.

Payment to Mortgagee -- If "we" pay the mortgagee for a loss and deny payment to "you", "we" are subrogated, up to the amount "we" paid for the loss, to all the rights of the mortgagee granted under the mortgage on the property. Subrogation will not impair the right of the mortgagee to recover the full amount of the mortgagee's claim.

At "our" option, "we" may pay to the mortgagee the whole principal on the mortgage plus the accrued interest. In this event, "we" shall receive a full assignment and transfer of the mortgage and all securities held as collateral to the mortgage debt.

Payment to Secured Party -- If "we" pay the secured party for a loss and deny payment to "you", "we" are subrogated, up to the amount "we" paid for the loss, to all the rights of the secured party granted under the security agreement. Subrogation will not impair the right of the secured party to recover the full amount of the security agreement.

At "our" option, "we" may pay the secured party the remaining amount due of the security agreement, plus the accrued interest. In this event, "we" shall receive full assignment of the security agreement and securities held as collateral for the agreement.

Payment to Lender -- If "we" pay the lender for a loss and deny payment to "you", "we" are subrogated, up to the amount "we" paid for the loss, to the rights of the lender to collect on the debt from "you". Subrogation will not impair the right of the lender to collect the rest of the debt from "you".

At "our" option, "we" may pay the lender the remaining amount due plus the accrued interest. In this event, "we" shall receive a full assignment of the lender's interest and any instruments given as security for the debt.

8. **No Benefit To Bailee** -- Coverage under this policy will not directly or indirectly benefit those who are paid to assume custody of the covered property.
9. **Policy Period** -- This policy only covers losses that occur during the policy period.
10. **Recoveries** -- This applies if "we" pay for a loss and lost or damaged property is recovered, or payment is made by those responsible for the loss.

"You" must inform "us" or "we" must inform "you" if either recovers property or receives payment. Proper costs incurred by either party are paid first.

"You" may keep the property. The amount of the claim paid, or a lesser amount to which "we" agree, must be returned to "us".

If the claim paid is less than the agreed loss due to a deductible, or other limiting "terms", the recovery is prorated between "you" and "us" based on the interest of each in the loss.

11. **Safety Glass** -- When breakage of glass is covered, "we" pay to replace the damaged glass with safety glazing materials if required by code, ordinance, or law.
12. **Subrogation** -- If "we" pay for a loss, "we" may require that "you" assign to "us" the right of recovery up to the amount "we" pay. "We" are not liable for a loss if, after the loss, "you" impair "our" right to recover against others. "You" may waive "your" right to recover, in writing, before a loss occurs, without affecting coverage. If "we" pay a loss to or for "you" and "you" recover from another party for the same loss, "you" must pay "us" as stated in Recoveries.
13. **Suit Against Us** -- No suit may be brought against "us" unless all the "terms" of this policy have been complied with and the suit is brought within two years after the loss.
14. **Volcanic Action** -- All volcanic action that occurs within a 168-hour period constitutes a single occurrence.

MIGRANT AND SEASONAL AGRICULTURAL WORKER PROTECTION ACT EXCLUSION

The following additional exclusion amends the liability coverage of this policy:

This policy does not apply to damages awarded under the Migrant and Seasonal Agricultural Worker Protection Act (29 USC sections 1801 et seq.) or awarded under any law or regulation pertaining to that Act.

AMENDMENT OF AIRCRAFT EXCLUSION

This policy is amended to include the following "terms". All other "terms" apply, except as amended by this endorsement.

EXCLUSIONS

Under Exclusions That Apply to Coverages L and M, exclusion b. is deleted and replaced by the following:

- b. "bodily injury" or "property damage" which results from the ownership, operation, maintenance, use, occupancy, renting, loaning, entrusting, supervision, loading, or unloading of any aircraft, except for "bodily injury" to a person while performing duties as a "domestic employee".

However, this exclusion does not apply to any hobby or model aircraft that is:

- 1) not designed or used to carry one or more operators, any other person, or cargo; and
- 2) not used for "business" or "farming".

EXCLUSIONS -- ASBESTOS

This policy is amended to include the following "terms". All other "terms" of the policy apply, except as amended by this endorsement.

EXCLUSIONS

The following additional exclusions are added:

1. "We" do not pay for "bodily injury" arising out of the actual, alleged, or threatened ingestion, inhalation, or absorption of asbestos, asbestos products, asbestos fibers, or asbestos dust.
2. "We" do not pay for "property damage" arising out of the actual, alleged, or threatened contact with, existence of, exposure to, or presence of asbestos, asbestos products, asbestos fibers, or asbestos dust.
3. "We do not pay for any loss, cost, or expense arising out of any:
 - a. request, demand, order, or statutory or regulatory requirement that any "insured" or others test for, monitor, clean up, remove, contain, treat, detoxify, neutralize, or in any way respond to or assess the effects of asbestos, asbestos products, asbestos fibers, or asbestos dust; or
 - b. claim or suit by or on behalf of any governmental body or authority relating to testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, or in any way responding to or assessing the effects of asbestos, asbestos products, asbestos fibers, or asbestos dust.

LEAD LIABILITY EXCLUSION

The following additional exclusions amend the liability coverage of this policy:

"We" do not pay for:

1. actual or alleged "bodily injury" arising out of the ingestion, inhalation, or absorption of lead in any form;
2. actual or alleged "property damage" (or "personal injury" or "advertising injury", if provided by this policy) arising out of any form of lead;
3. any loss, cost, or expense arising out of any request, demand, or order that any "insured" or others test for, monitor, clean up, remove, contain, treat, detoxify, neutralize, or in any way respond to or assess the effects of lead; or
4. any loss, cost, or expense arising out of any claim or suit by or on behalf of any governmental authority for damages resulting from testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, or in any way responding to or assessing the effects of lead.

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PRIVATE HORSE LIABILITY COVERAGE (Owned or Leased)

The following Table of Contents shows how this Private Horse Liability Coverage is organized. It will help "you" locate particular sections of this form.

TABLE OF CONTENTS

	Page
Agreement	1
Definitions	2
Principal Coverages	
Coverage L – Private Horse Liability	3
Coverage M -- Medical Payments To Others	3
Coverage O – Fire Legal Liability.....	3
Incidental Coverages	4
Exclusions	
Exclusions That Apply To Coverages L and M	4
Additional Exclusions That Apply Only To Coverage L	6
Additional Exclusions That Apply Only To Coverage M	6
What You Must Do In Case Of Loss	6
How Much We Pay	7
Payment of Loss or Claim	8
Conditions	8

Additional provisions are shown separately.

Endorsements and schedules may also apply. They are identified on the "declarations".

Refer to the Definitions for words and phrases that have special meaning. These words and phrases are shown in quotation marks or bold type.

AGREEMENT

In return for "your" payment of the required premium, "we" provide the coverages described herein subject to all the "terms".

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DEFINITIONS

1. The words "you" and "your" mean the person or persons named as the "insured" on the "declarations". This includes "your" spouse if a resident of "your" household.
2. The words "we", "us", and "our" mean the company providing this Private Horse Liability Coverage.
3. "Bodily Injury" means bodily harm to a person and includes sickness, disease, or death. This also includes required care and loss of services.

"Bodily Injury" does not mean bodily harm, sickness, disease, or death that arises out of:

- a. a communicable disease;
- b. the actual, alleged, or threatened sexual molestation of a person;
- c. mental or emotional injury, suffering, or distress that does not result from physical injury; or
- d. the use, sale, manufacture, delivery, transfer, or possession by any person of Controlled Substances as defined by the Federal Food and Drug Law at 21 U.S.C.A. Sections 811 and 812, including any amendments. Controlled Substances include but are not limited to cocaine,

LSD, marijuana, and all narcotic or hallucinogenic drugs. However, this does not apply to the legitimate use of prescription drugs by a person following the orders of a licensed physician.

4. "Business" means a trade, a profession, or an occupation, all whether full or part time. This includes the rental of property to others.
5. "Coverage Territory" means:
 - a. the continental United States of America and Canada;
 - b. international waters or airspace, but only if the injury or damage occurs in the course of travel or transportation between any places included in Paragraph a. above; or
 - c. all other parts of the world if injury or damage arises out of the activities of a "horse" who is permanently stabled in the territory described in Paragraph a. above but is away for a short time; provided the "insured's" responsibility to pay damages is determined in a suit on the merits, in the territory described in Paragraph a. above or in a settlement we agree to.
6. "Declarations" are all pages labeled Declarations, Supplemental Declarations, or Schedules which pertain to this Private Horse Liability Coverage.
7. "Employee" means:
 - a. person employed by an "insured" to perform duties that relate to the use and care of the personal "horse";

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b. a person whose duties are in connection with the equine operations of the "insured"; or

c. a leased worker.

"Employee" does not include a temporary worker.

8. "Horse" means any breed of horse specified in the schedule, or as amended by a subsequent endorsement attached to this Insurance Policy, in which "you" have:

a. whole ownership,

b. partial ownership, or

c. leased to "you" by its legal owner.

9. "Insured" means:

a. "you";

b. "your" relatives if residents of "your" household;

c. persons under the age of 21 in "your" care or in the care of "your" resident relatives;

d. "your" legal representative, if "you" die while insured by this Private Horse Liability Coverage. This person is an "insured" only for liability caused by a "horse" scheduled on this policy;

e. persons using or caring for "horses" owned by an "insured" as defined under a., b., or c. above and to which this Private Horse Liability Coverage applies. This does not include persons using or caring for "horses" in the course of "business" or without the consent.

Each of the above is a separate "insured", but this does not increase "our" "limit".

10. "Limit" means the amount of coverage that applies.

11. "Livery Stable" means a place where "horses" and/or vehicles are kept for hire.

12. "Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

13. "Pollutant" means mean any solid, liquid, gaseous, thermal, or radioactive irritant or contaminant, including acids, alkalis, chemicals, fumes, smoke, soot, vapor, and waste. Waste includes materials to be recycled, reconditioned, or reclaimed, as well as disposed of.

14. "Property Damage" means:

a. physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or

b. loss of use of tangible property that is not physically injured. Any such loss of use shall be deemed to occur at the time of the "occurrence" that caused it.

15. "Terms" means all provisions, limitations, exclusions, conditions, and definitions that apply to this Private Horse Liability Coverage.

PRINCIPAL COVERAGES

Each Principal Coverage applies only if a "limit" is shown on the "declarations".

Coverage L – Private Horse Liability –

1. "We" pay, up to "our" "limit", all sums for which an "insured" is liable by law because of "bodily injury" or "property damage" caused solely by a "horse" that has been specifically scheduled on this

policy and is owned or leased by "you". "We" will defend a suit seeking damages if the suit resulted from "bodily injury" or "property damage" not excluded under this coverage. "We" may make investigations and settle claims or suits that "we" decide are appropriate. "We" do not have to provide defense after "we" have paid an amount equal to our "limit" as a result of a judgment or written settlement.

COVERAGE M – Medical Payments To Others

1. "We" pay the necessary medical expenses if they are incurred or medically determined within 3 years from the date of an accident causing covered "bodily injury". Medical expenses mean the reasonable charges for medical, surgical, X-ray, dental, ambulance, hospital, professional nursing, and funeral services, prosthetic devices, hearing aids, prescription drugs, and eyeglasses, including contact lenses. This applies only to:
 - a. an accident caused solely by a "horse" that has been specifically scheduled on this policy and is owned or leased by "you" and.
 - 1) The accident takes place in the "coverage territory" and during the Policy Period;
 - 2) The expenses are incurred and reported to "us" within one year of the date of the accident; and
 - 3) The injured person submits to examination, at "our" expense, by physicians, of "our" choice as often as "we" reasonably require.

COVERAGE O – Fire Legal Liability

1. "We" pay for "property damage" to buildings or parts of buildings, which "you" rent from another, or temporarily occupied by you with permission of the owner, arising out of any one fire.

INCIDENTAL COVERAGES

The following coverages are subject to all the "terms" of Coverages L and M. Except for Claims and Defense Cost and First Aid Expense, they do not increase the "limits" stated for the Principal Coverages.

1. Damage to Property of Others

Regardless of an "insured's" legal liability, "we" pay for property of others damaged by an "insured", or "we" repair or replace the property, to the extent practical, with property of like kind and quality. "Our" "limit" for this coverage is \$10,000 per "occurrence".

The exclusions that apply to Coverages L and M do not apply to this coverage. However, "we" do not pay for damage to property:

- a. owned by an "insured", or owned by, rented to, or leased to another resident of "your" household or the tenant of an "insured";
- b. caused intentionally by an "insured" who has attained the age of 13; or
- c. resulting in whole or in part from:
 - 1) activities related to a "business" of an "insured"; or
 - 2) premises owned, rented, or controlled by an "insured", other than an "insured premises".

2. **Contracts and Agreements** --"We" pay for damages for "bodily injury" or "property damage" resulting from liability assumed by an "insured" under a written contract made before the loss. The loss causing the "bodily injury" or "property damage" must have occurred during the policy period. This coverage does not apply to a contract with "business" activities of an "insured".

3. **Claims and Defense Cost** – If "we" defend a suit, "we" pay:

- a. the costs taxed an "insured";
 - b. the costs incurred by "us";
 - c. the actual loss of earnings by an "insured" for time spent away from work at "our" request ("We" pay up to \$50 per day.);
 - d. the necessary costs incurred by "you" at "our" request";
 - e. the interest which accrues after the entry of a judgment, but ending when "we" tender or pay up to our "limit";
 - f. the premiums on appeal bonds or bonds for the release of attachments up to "our" "limit" ("We" are not required to apply for or furnish bonds.);
 - g. the premiums up to \$500 per bail bond required of an "insured" because of an accident or a traffic law violation arising out of the use of a vehicle to which this Private Horse Liability Coverage applies ("We" are not required to apply for or furnish bonds.); and
 - h. prejudgment interest awarded against an "insured" on that part of the judgment "we" pay. If "we" offer to pay the "limit", "we" will not pay any prejudgment interest based on that period of time after the offer.
4. **First Aid Expense** -- "We" pay the expenses incurred by an "insured" for first aid to persons, other than "insureds", for covered "bodily injury".

EXCLUSIONS

"We" do not pay for a loss if one or more of the following excluded events apply to the loss, regardless of other causes or events

that contribute to or aggravate the loss, whether such causes or events act to produce the loss before, at the same time as, or after the excluded event.

1. **Exclusions That Apply to Coverages L and M** -- This Private Horse Liability Coverage does not apply to:

a. War

"Bodily injury" or "property damage" which results from war. (This includes undeclared war, civil war, insurrection, rebellion, revolution, warlike act by a military force or military personnel, or destruction, seizure, or use of property for a military purpose. Discharge of a nuclear weapon is deemed a warlike act even if accidental.)

b. Athletic Or Sports Participants

"Bodily injury" to any person, including but not limited to jockeys, exercise riders, and clowns, while riding or driving a "horse" for the purpose of warm up or exercise, practicing for, instructing, or participating in any of the following operations, including any similar operations:

- 1) Rodeo events, including but not limited to bull riding, steer wrestling, bare-back and saddle bronco riding, bull fighting or calf scrambling;
- 2) Racing, including but not limited to harness, steeple chase or flat racing;
- 3) Vaulting, including but not limited to gymnastics on horseback;
- 4) Hunts; and
- 5) Jousting, including but not limited to medieval games.

c. Professional Services

"Bodily injury" or "property damage" which results from the rendering of or the failing to render a professional service.

d. "Business"

"Bodily injury" or "property damage" which results from activities related to the "business" of an "insured".

e. Commercial Equine Operations

"Bodily injury" or "property damage" which results from the "insured" or "employees" of the "insured" when directly involved in:

- 1) boarding;
- 2) breeding;
- 3) training;
- 4) racing;
- 5) leasing;

- 6) instruction of people to: a) handle;
- b) drive;
- c) ride.
- 7) use of "horses" for riding or driving purposes; and 8) pasturing.

f. Intentional or Malicious Acts

"Bodily injury" or "property damage" which is expected by, directed by, or intended by the "insured"; or that is the result of intentional and malicious acts of the "insured".

However, this exclusion does not apply to "bodily injury" that arises out of the use of reasonable force to protect people or property.

g. Pollutants

"Bodily injury" or "property damage" which results from the actual, alleged, or threatened discharge, dispersal, seepage, migration, release, or escape of "pollutants" into or upon land, water, or air.

h. Pollutant Cleanup

Any loss, cost, or expense arising out of any:

- 1) request, demand, or order that any "insured" or others test for, monitor,

clean up, remove, contain, treat, detoxify, neutralize, or in any way respond to or assess the effects of

"pollutants"; or

- 2) claim or suit by or on behalf of any governmental authority relating to testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, or in any way responding to or assessing the effects of "pollutants"

i. Employees

"Bodily injury" to an "employee" of an "insured" if it occurs in the course of employment by the "insured" or the consequential injury to a spouse, child, parent, brother, or sister of such injured "employee".

This exclusion applies whether the "insured" is liable either as an employer or in any other capacity and to any obligation of an "insured" to fully or partially reimburse another for damages arising out of the injury.

However, this exclusion does not apply to liability assumed by an "insured" under a contract or an agreement.

2. **Additional Exclusions That Apply Only to Coverage L** – This Private Horse Liability Coverage does not apply to:

a. Injury to an Insured

"Bodily injury" to "you", and if residents of "your" household, "your" relatives and persons under the age of 21 in "your" care or in the care of "your" resident relatives.

b. Contractual Liability

Liability assumed under a contract or an agreement, except as provided by

Incidental Contracts and Agreements Coverage.

c. Owned Property Damage

Damage to property owned by an "insured".

d. Livery Stable Operations

This policy affords no coverage for any claim or suit arising directly or

indirectly out of "livery stable" operations, including, but not limited to, rental of saddle animals, hay rides, carriage rides, sleigh rides, trail rides or pack trips.

e. Premises And Operations

- 1) Damage to property that is rented to, occupied by, used by, or in the care of an "insured", except for "property damage" caused by fire, smoke, or explosion.
- 2) Any claim or suit arising out of the ownership, use or maintenance of any premises, or from any operations of the "insured" other than claims arising out of "bodily injury" or "property damage" caused solely by a "horse" that has been specifically scheduled on this policy and is owned or leased by "you".

f. Workers' Compensation And Similar Laws

Any obligation of the "insured" under a workers' compensation, disability benefits or unemployment compensation law or any similar law.

2. Additional Exclusions That Apply Only to Coverage M -Medical Payments.

Coverage M does not apply to "bodily injury" to:

a. Any "insured"

b. Coverage L Exclusions

Excluded under Coverage L.

c. Hired Person

To a person hired to do work for or on behalf of any "insured" or a tenant of any "insured".

d. Other Causes Of Injury

Not caused solely by a "horse" that has been specifically scheduled on this policy and is owned or leased by "you".

e. Workers' Compensation And Similar Laws

a person if a workers compensation policy covers the injury or if benefits are provided under a workers' compensation, non-occupational disability, occupational disease, or like law.

WHAT "YOU" MUST DO IN CASE OF LOSS

1. **Notice** -- In the case of an "occurrence" (or if an "insured" becomes aware of anything that indicates that there might be a claim under this Private Horse Liability Coverage), the "insured" must promptly give "us" or "our" agent notice (in writing if requested).

The notice must state:

- a. the name of the "insured"; the policy number; and the time, place, and the details of the "occurrence"; and
- b. the names and the addresses of all known potential claimants and witnesses.

2. **Cooperation** -- The "insured" must cooperate with "us" in performing all acts required by this Private Horse Liability Coverage.

3. **Volunteer Payments** -- An "insured" must not make payments, pay or offer rewards, or assume obligations or other costs except at the "insured's" own cost.

This does not apply to costs that are allowed by this Private Horse Liability Coverage.

4. **Other Duties -- Liability Coverage** -- In case of an "occurrence" which might result in a claim, the "insured" must promptly give "us" copies of all legal papers, demands, and notices that relate to the "occurrence" or claim.

At "our" request, the "insured" must help "us":

- a. to settle a claim;
 - b. to conduct suits (This includes being at trials and hearings.);
 - c. to enforce the right of recovery or indemnification against all parties who may be liable to an "insured" for the injury or damage;
 - d. in the securing of and giving of evidence; and
 - e. in obtaining the attendance of all witnesses.
5. **Other Duties -- Medical Payments To Others Coverage** -- In case of a loss the injured person or someone acting on behalf of that person must:
- a. give "us" written proof of claim (under oath if "we" request) as soon as practical; and
 - b. authorize "us" to get copies of medical records.

The injured person must submit to medical exams by doctors chosen by "us" when and as often as "we" may reasonably require.

6. **Other Duties -- Damage to Property of Others** -- In case of a loss, "'you'" must give "us" a signed, sworn statement of loss within 60 days after the loss and "'you'" must exhibit the damaged property if it is within "'your" control.

HOW MUCH "WE" PAY

1. The "limits", shown on the "declarations" and subject to the following conditions, are the most "we" pay regardless of the number of:
 - a. persons insured under this Private Horse Liability Coverage;
 - b. parties who sustain injury or damage; or
 - c. claims made or suits brought.
2. **Coverage L -- Private Horse Liability** -- Subject to the General Aggregate Limit, the Coverage L "Limit" is the most "we" pay for loss for each "occurrence".

3. **Coverage M -- Medical Payments To Others** -- The "limit" shown on the "declarations" per person for Coverage M is the most "we" pay for all medical expenses payable for "bodily injury" to one person as the result of one accident.

When a "limit" is shown on the "declarations" per accident for Coverage M, that "limit" is the most "we" pay for any one accident.

The payment of a claim under Coverage M does not mean "we" admit "we" are liable under Coverage L.

4. **Insurance Under More Than One Coverage** -- If more than one coverage applies to a loss, "we" pay no more than the actual loss.
5. **Coverage L -- Insurance Under More Than One Policy** -- Coverage L is excess over other insurance that applies to the loss or claim.

If the other insurance is also excess, "we" pay only "our" share of the loss. "We" pay only that part of the loss that the applicable "limit" under this Private Horse Liability Coverage bears to the total amount of insurance covering the loss.

matter that relates to this insurance or the subject thereof.

PAYMENT OF LOSS OR CLAIM

A person who has secured a judgment against an "insured" for an insured loss or has liability established by a written agreement between the claimant, an "insured", and "us", is entitled to recover under this Private Horse Liability Coverage to the extent of coverage provided.

CONDITIONS

1. **Bankruptcy Of An "Insured"** -- Bankruptcy or insolvency of an "insured" does not relieve "us" of "our" obligations under this Private Horse Liability Coverage.
2. **Conformity With Statute** -- "Terms" in conflict with the laws of the state where the premises described on the "declarations" is located are changed to conform to such laws.
3. **Misrepresentation, Concealment, Or Fraud**
-- This coverage is void if, before or after a loss:
 - a. "you" or any other "insured" has willfully concealed or misrepresented:
 - 1) a material fact or circumstance that relates to this insurance or the subject thereof; or
 - 2) the "insured's" interest herein;
 - b. there has been fraud or false swearing by "you" or any other "insured" with regard to a

4. **Policy Period** -- These coverages apply only to "bodily injury" and "property damage" that occur during the policy period.

5. **Subrogation** -- If "we" pay for a loss, "we" may require that "you" assign to "us" the right of recovery up to the amount "we" pay. "We" are not liable for a loss if, after the loss, "you" impair "our" right to recover against others. "You" may waive "your" right to recover, in writing, before a loss occurs, without affecting coverage.

Subrogation does not apply to Coverage M -- Medical Payments to Others or to Damage to Property of Others under the Incidental Private Horse Liability Coverages.

6. **Suit Against Us** -- No suit may be brought against "us" unless:
 - a. all the "terms" of this Private Horse Liability Coverage have been complied with; and
 - b. the amount of an "insured's" liability has been fixed by:
 - 1) a final judgment against an "insured" as a result of a trial; or
 - 2) a written agreement of the "insured", the claimant, and "us".

No person has a right under this Private Horse Liability Coverage to join "us" or implead "us" in actions that are brought to fix the liability of an "insured".

ADDITIONAL INSURED - AUTOMATIC STATUS

This policy is amended to include the following "terms". All other "terms" of the policy apply, except as amended by this endorsement.

Private Horse Liability Coverage is amended to include the following "terms". All other "terms" of Private Horse Liability Coverage apply, except as amended by this endorsement.

1. Under Definitions, the definition of "insured" is amended to include any person or organization "you" have agreed in writing in a contract or agreement to add as an additional insured on "your" policy, but only with respect to such person's or organization's liability for "bodily injury" or "property damage":
 - a. for which "you" are legally liable; and
 - b. which is caused solely by a "horse" that has been specifically scheduled on this policy and is owned or leased by "you".
2. The coverage provided to an additional insured does not apply to any "occurrence" that takes place after:
 - a. the specifically scheduled "horse" is no longer scheduled in the "declarations"; or
 - b. the written contract or agreement has expired or is no longer required.
3. Coverage and "limits" for an additional insured:
 - a. will not exceed the insurance requirements of "your" contract or agreement with that additional insured; and
 - b. apply only to the extent permitted by law.